



CHAPTER 10.

An Act to relax the rules set out in the Third Schedule to the House of Commons (Redistribution of Seats) Act, 1944 so far as they relate to the application of the electoral quota and, in consequence thereof, to postpone the enumeration date for the purposes of the initial report under section three of that Act.
[18th February 1947.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In the rules set out in the Third Schedule to the House Amendment of Commons (Redistribution of Seats) Act, 1944, (hereafter 7 & 8 Geo. 6. in this Act referred to as "the principal Act"), the following ^{c. 41.} provisions shall cease to have effect, that is to say—

- (a) rule 4 (which limits the electorate of a constituency to not more than a quarter above or below the electoral quota and to which rule 5 as to conformity with local government boundaries is subject); and
- (b) in rule 3, paragraph (1) (which requires a two-member constituency to be divided or return a single member, if its electorate is not within the limits laid down by that paragraph for such a constituency) and subparagraph (i) of paragraph (3) (which is supplemental to the said paragraph (1)).

(2) In lieu thereof, the following rule shall be inserted immediately after rule 5 of the said rules, that is to say,—

"5A.—(1) The electorate of any constituency shall be as near the electoral quota as is practicable having

regard to the foregoing rules; and a Boundary Commission may depart from the strict application of the last foregoing rule if it appears to them that a departure is desirable to avoid an excessive disparity between the electorate of any constituency and the electoral quota, or between the electorate thereof and that of neighbouring constituencies in the part of the United Kingdom with which they are concerned.

(2) For the purposes of this rule a constituency returning two members shall be treated as two constituencies.”;

and paragraph (2) of the said rule 3 shall have effect with the substitution for the words “ Any other two-member constituency shall be divided as aforesaid ” of the words “ Any two-member constituency shall be divided into or among two or more other constituencies, or shall be required to return a single member,” and with the addition at the end thereof of the words “ and, having regard to the two next following rules, that it is undesirable to require it to return a single member ”.

8 & 9 Geo. 6.
c. 5.

(3) Accordingly the rules set out in the said Third Schedule shall have effect, with the amendments made by section thirty-three of the Representation of the People Act, 1945, and by this Act, as set out in the Schedule to this Act.

(4) The amendments made by this section shall apply for the purposes of the initial report of the Boundary Commissions under section three of the principal Act, as well as to their subsequent reports under section four thereof; and accordingly the enumeration date for the purposes of the initial report shall be the fifteenth day of October, nineteen hundred and forty-six, instead of the fifteenth day of October, nineteen hundred and forty-five (being the day appointed by the Secretary of State under subsection (2) of section thirty-three of the Representation of the People Act, 1945).

(5) Any increase occasioned by the passing of the last foregoing subsection in the expenses of the Commissions which, under paragraph 3 of Part II of the First Schedule to the principal Act, are to be defrayed out of moneys provided by Parliament shall also be so defrayed.

Short title and
citation.

2. This Act may be cited as the House of Commons (Redistribution of Seats) Act, 1947, and this Act and the principal Act as amended by the Representation of the People Act, 1945, may be cited together as the House of Commons (Redistribution of Seats) Acts, 1944 and 1947.

SCHEDULE.

Section 1.

THE THIRD SCHEDULE TO THE PRINCIPAL ACT,
AS AMENDED.

RULES FOR DISTRIBUTION OF SEATS.

1. The number of constituencies in the several parts of the United Kingdom set out in the first column of the following table shall be as stated respectively in the second column of that table—

<i>Part of the United Kingdom.</i>	<i>No. of Constituencies.</i>
Great Britain	Not substantially greater or less than 591.
Scotland... ..	Not less than 71.
Wales	Not less than 35.
Northern Ireland	12.

2.—(1) A two-member constituency within the meaning of the next following rule which is not divided or required to return a single member as therein provided shall, subject to any adjustment of its boundaries made in accordance with that rule, continue to return two members.

(2) Every other constituency shall return a single member.

3.—(2) Any two-member constituency shall be divided into or among two or more other constituencies, or shall be required to return a single member, unless the Boundary Commission concerned, after causing a local inquiry to be held, are satisfied, having regard to any particular circumstances affecting the constituency, that it is undesirable so to divide it and, having regard to the two next following rules, that it is undesirable to require it to return a single member.

(3) Where the boundaries of a borough as last defined for the purpose of ascertaining the boundaries of a two-member constituency—

(a) do not include an area which is included within the boundaries of the borough as defined for local government purposes on the enumeration date; or

(b) include an area which is not included within the boundaries of the borough as so defined for local government purposes;

then if it is determined under paragraph (2) of this rule that the constituency shall not be divided as aforesaid, the boundaries of the borough shall be redefined, for the purpose of ascertaining the boundaries of the constituency, so as to include or exclude that area, as the case may be.

(4) In the last foregoing paragraph, for references to a borough there shall be substituted, in its application to Scotland, references to a county of a city and, in its application to Northern Ireland, references to a county.

(5) In this rule the expression "two-member constituency" means a constituency returning two members on the enumeration date.

5.—(1) So far as is practicable having regard to the foregoing rules—

(a) in England and Wales,—

(i) no county or any part thereof shall be included in a constituency which includes the whole or part of any other county or the whole or part of a county borough or metropolitan borough ;

(ii) no county borough or any part thereof shall be included in a constituency which includes the whole or part of any other county borough or the whole or part of a metropolitan borough ;

(iii) no metropolitan borough or any part thereof shall be included in a constituency which includes the whole or part of any other metropolitan borough ;

(iv) no county district shall be included partly in one constituency and partly in another ;

(b) in Scotland,—

(i) no county or burgh shall be included partly in one parliamentary county and partly in another, or partly in a parliamentary county and partly in a parliamentary borough ;

(ii) no burgh other than a county of a city shall be included partly in one constituency and partly in another ;

(c) in Northern Ireland, no county district shall be included partly in one constituency and partly in another.

(2) In paragraph (1) of this rule the following expressions have the following meanings, that is to say :—

"county" means, in sub-paragraph (a), an administrative county other than the county of London, and, in sub-paragraph (b), a county exclusive of any burgh situate therein ;

23 & 24 Geo. 5.
c. 51.

"county borough" has the same meaning as in the Local Government Act, 1933 ;

"county district" has, in sub-paragraph (a), the same meaning as in the Local Government Act, 1933, and, in sub-paragraph (c), the same meaning as in the Local Government (Ireland) Act, 1898.

61 & 62 Vict.
c. 37.

5A.—(1) The electorate of any constituency shall be as near the electoral quota as is practicable having regard to the foregoing rules ; and a Boundary Commission may depart from the strict application of the last foregoing rule if it appears to them that a departure is desirable to avoid an excessive disparity between the electorate of any constituency and the electoral quota, or between the electorate

thereof and that of neighbouring constituencies in the part of the United Kingdom with which they are concerned.

(2) For the purposes of this rule a constituency returning two members shall be treated as two constituencies.

6. A Boundary Commission may depart from the strict application of the last two foregoing rules if special geographical considerations, including in particular the size, shape and accessibility of a constituency, appear to them to render a departure desirable.

7. Nothing in rules 2 to 6 of these rules shall apply to the City of London, but that City as constituted at the commencement of this Act shall continue to be a separate constituency, and shall return either two members or a single member as may be provided by the Act giving effect (whether with or without modifications) to the recommendations contained in the reports submitted by the Boundary Commissions under section three of this Act.

8.—(1) For the purpose of these rules—

(a) the expression “electoral quota” means—

(i) in the application of these rules to a constituency in Great Britain, a number obtained by dividing the electorate for Great Britain by the number of constituencies in Great Britain existing on the enumeration date, or, in applying these rules for the purpose of section three of this Act, by the number of such constituencies existing at the commencement of this Act, namely five hundred and ninety-one; and

(ii) in the application of these rules to a constituency in Northern Ireland, a number obtained by dividing the electorate for Northern Ireland by the number of constituencies in Northern Ireland existing on the enumeration date;

(b) the expression “electorate” means—

(i) in relation to a constituency or any part thereof, the number of persons whose names appear on the parliamentary register of electors in force on the enumeration date under the Representation of the People Acts for the constituency or that part thereof, or, if no such register is then so in force, the last such register which was so in force; and

(ii) in relation to Great Britain or Northern Ireland, the aggregate electorate as hereinbefore defined of all the constituencies therein.

(2) In reckoning for the purposes of these rules the number of constituencies in any part of the United Kingdom, a constituency returning two members shall be reckoned as two constituencies.